

25STCV02463 25STCV02463

County: los-angeles

Division: Civil Law and Motion

Department: 224

Hearing date: 2026-07-06

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C224%2C07%2F06%2F2026

Source SHA-256: dcaa187c9012e8e020ade239370fa1648e4dd9d4ffd302e3471cc3324a1eeac2

Case Number: 25STCV02463 Hearing Date: July 6, 2026 Dept: 224

Deshler v. Darleen Counce-Deshler

TENTATIVE RULING

On November 25, 2026 at 9:00 a.m. the court sets:

Default Judgment Prove-up Hearing Re: Plaintiff Donald W. Deshler's Request for Order Quieting Title Re: Real Property located at 18504 Roslin Ave., Torrance, CA 90504.

Plaintiff and his witnesses must appear in person at the hearing. Plaintiff must file a complete default judgment package, including a proposed judgment, and serve it on Defendant Darlene Counce-Deshler by no later than September 30, 2026 at all three addresses listed below.

Plaintiff must also give notice of the default prove-up hearing to Ms. Deshler at the three addresses below. Notice must be given within 5 days, and Proof of service of notice must be filed within 10 days.

Failure to comply with any of the above items will result in the hearing being continued or judgment being denied.

FACTS OF THE CASE:

This action arises out of events transpiring during Plaintiff and Defendant's marriage. Defendant coerced Plaintiff to unknowingly quitclaim his interest in his Property to Defendant as a "gift." Plaintiff now seeks a declaration that "Plaintiff is the sole and exclusive owner" of the stolen real property at 18504 Roslin Ave., Torrance, CA 90504.

PROOF OF SERVICE/DEFAULT:

Default was entered on May 20, 2026.

No judgment amount is sought. Rather, Plaintiff seeks to quiet title.

ANALYSIS:

Plaintiff seeks a Court Order that:

- a. Plaintiff is deemed the sole and exclusive owner of the real property located at 18504 Roslin Ave., Torrance, CA 90504 (the "Property";
- b. The document described as a "Quitclaim Deed" relating to the Property and attached hereto as EXHIBIT A is deemed null and void at the time of its signing;
- c. It is ordered and deemed that Defendant has no ownership interest of any kind in the Property;
- d. An elisor is necessary to sign documents on behalf of Defendant based upon the actions of Defendant and Defendant's refusal to participate in this proceeding to date, to sign documents on behalf of Defendant, pursuant to Code of Civil Procedure §128 and Los Angeles Superior Court Local Rule 3.213(c); and
- e. The Clerk of the Court is ordered to act as an elisor and execute the Quitclaim attached hereto as EXHIBIT B on Defendant's behalf.

Plaintiff provides his own declaration and copies of the Quitclaim deed in support of Judgment. (Deshler Decl., Exh. A)

Plaintiff has submitted all the requisite forms. Proposed form of judgment is provided (JUD-100).

Doe defendants have been dismissed.

585 Declaration has been provided. (Deshler Decl.)

Discussion

California Code of Civil Procedure section 764.010 expressly prohibits the entry of a default judgment in a quiet title action. Instead, "[t]he court shall not enter judgment by default but shall in all cases require evidence of plaintiff's title and hear such evidence as may be offered respecting the claims of any of the defendants." (Code Civ. Proc., § 764.010.)

Although a traditional default judgment is unavailable in a quiet title action based on adverse possession, a plaintiff is not without recourse when properly named defendants fail to respond. After defaults have been entered, the plaintiff may obtain judgment only after the court conducts the statutorily required evidentiary hearing and determines that the plaintiff has established all elements of adverse possession. (Code Civ. Proc., §§ 322–325; Civ. Code, § 1007.)

As explained by the Court of Appeal:

"If a court holds a properly noticed evidentiary hearing and no defendant turns up, then the court renders judgment 'in accordance with the evidence and the law,' based on what it has before it. This would not be a default judgment; any defendant, even one in default, has the right and the opportunity to appear and present evidence. This is another reason for scheduling and holding a hearing in open court; it allows the court to finish the case without falling foul of the statute."

(Harbour Vista, LLC v. HSBC Mortgage Services Inc. (2011) 201 Cal.App.4th 1496, 1508.)

The Court previously continued the OSC for the Plaintiff to submit proof that 9674 Telefair Way, Torrance, CA 90505 was the proper address for service for Defendant.

Plaintiff has now corrected the deficiency. Plaintiff has submitted the Declaration of Richard Lloyd Sherman which sets forth the basis for the address. Namely, that Defendant gave that address on a form regarding seeking a restraining Order.

However, now the issue remains that Defendant is entitled to notice of the Default Prove-up Hearing so that she has an opportunity to appear and contest any evidence offered by Plaintiff. Plaintiff has not filed proof of service of notice of any default hearing.

The Court will thus set a prove-up hearing, and Order Plaintiff to give notice of it at the address where she was served with the lawsuit: 18504 Roslin Avenue, Torrance, CA 90504, AND at the address where she was served with the request for entry of default entered on May 20, 2026: 1016 S. Record Ave. Los Angeles, CA 90023, AND at the address where she was first given notice of request for entry of default: 9674 Telefair Way Torrance, CA 90504.

Plaintiff is ordered to file and serve a complete Default Judgment Package on

Conclusion

On November 25, 2026 at 9:00 a.m. the court sets:

Default Judgment Prove-up Hearing Re: Plaintiff Donald W. Deshler's Request for Order Quieting Title Re: Real Property located at 18504 Roslin Ave., Torrance, CA 90504.

Plaintiff and his witnesses must appear in person at the hearing. Plaintiff must file a complete default judgment package, including a proposed judgment, and serve it on Defendant Darlene Counce-Deshler by no later than September 30, 2026 at all three addresses listed below.

Plaintiff must also give notice of the default prove-up hearing to Ms. Deshler at the three addresses below. Notice must be given within 5 days, and Proof of service of notice must be filed within 10 days.

Failure to comply with any of the above items will result in the hearing being continued or judgment being denied.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.